

Stereo HCJ DA 38

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.27186 of 2022

Muhammad Hamza Shahbaz Sharif V/S Federation of Pakistan and another

J U D G M E N T

Date of hearing	29.04.2022
Petitioner(s) by	M/s Ashtar Ausaf Ali, Sr. ASC with Khalid Ishaq, Sardar Akbar Ali Dogar and Ch. Sultan Mahmood, ASCs.
Respondent(s) by	Mirza Nasar Ahmad, Additional Attorney General for the Federation. Barrister Umair Khan Niazi and Anees Ali Hashmi, Additional Advocates General for Province of Punjab with Fiaz Basra, AAG. Mr. Muhammad Azhar Siddique, ASC for the Applicants in C.M.No.03 of 2022 under Order 1 Rule 10 CPC.

JAWAD HASSAN, J. This constitutional petition has been filed with the following prayer:

“In view of the facts and grounds explicated above, it is most respectfully prayed that the instant petition may kindly be allowed and, in the interest of justice, equity to ensure that the Province is governed by the chosen representatives of the people and for the enforcement of fundamental rights of the people of Punjab and in order to restore constitutional functioning of the province, this Hon'ble Court may kindly direct the administration of oath to the Chief Minister Elect by a person nominated by this Hon'ble Court at a specified place and time and the coercive arm of the state be set in motion for implementation of the orders of this Hon'ble Court.

It is further prayed that that the defiant attitude of all those constitutional office holders may kindly be declared to be in utter and blatant violations of the Constitution and judgment of this Hon'ble Court.

Any other relief which this Court deems fit may kindly be granted”

2. Mr. Muhammad Azhar Siddique, ASC has also filed C.M.No.03 of 2022 for impleading certain persons, whose names are mentioned in the subject application. Allowed.

3. When confronted how this petition is maintainable because the Petitioner has remedy to file contempt petition, if the judgments dated 22.04.2022 and 26.04.2022 (the “**judgments**”) of this Court, have not been complied with. In response, Mr. Ashtar Ausaf Ali, Sr. ASC states that the Court on 22.04.2022 and 26.04.2022 passed the judgments, which have not been implemented, therefore, this petition is being filed for the enforcement of fundamental rights under Article 199(1)(c) of the Constitution.

4. Mirza Nasar Ahmad, Additional Attorney General objected to the maintainability of the petition on the ground that neither the President nor the Governor has been impleaded as party to this petition.

5. Mr. Muhammad Azhar Siddique, ASC also objected to the maintainability of the petition by referring Article 187 and 204 of the Constitution. He further stated that the Applicants have filed Intra Court Appeal before learned Division Bench of this Court against the judgment whereby the election of Chief Minister was ordered. He next added that the Respondents have not been heard by the Court while passing judgments as such it is violation of Article 10(A) of the Constitution.

6. Arguments heard. Record perused.

7. The prayer made by the Petitioner is under Article 199(1)(c) of the Constitution for the enforcement of fundamental rights conferred by Chapter 1 of Part-II. An objection with regard to non-issuance of notice, while passing the aforesaid judgments, has been raised by Mr.

Muhammad Azhar Siddique, ASC and Barrister Umair Khan Niazi, Additional Advocate General. Toady an application filed by Mr. Muhammad Azhar Siddique, ASC under Order 1 Rule 10 CPC was allowed and the Court gave hearing to learned counsel for the Respondents. Perusal of the order and the judgment reveals that it was passed after hearing Additional Attorney General, Deputy Attorney General, Advocate General Punjab, Additional Advocates General Punjab and Deputy Prosecutor General. At the very outset, it is observed that this Court while deciding W.P.No.24320 of 2022 observed as under:

“It is expected from the President of Pakistan that he will resolve/decide the matter of nomination of any person in terms of Article 104 of the Constitution keeping in view the fact that people of the Province of Punjab are already suffering on account of non-functional Provincial Government for the last 21-days, which as held in Mustafa Impex’s case by the honourable Supreme Court (PLD 2016 Supreme Court 808) consists of Chief Minister and the Cabinet”.

It is also hoped that the President of Pakistan will not wait for the letter of the Governor as the Governor has no authority under Article 130(5) of the Constitution, which is as follows:-

“130(5). The member elected under clause (4) shall be called upon by the Governor to assume the office of Chief Minister and he shall, before entering upon the office, make before the Governor oath in the form set out in the Third Schedule:”

to exercise any option except to ask the newly elected Chief Minister to assume the office by administering oath promptly”.

8. Despite clear directions of this Court, it was not acted upon and complied with by the office of President of Pakistan which prompted the Petitioner to file another Writ Petition No.25671 of 2022 on the same subject which was decided with the following observations:

“10 As the Oath is to Almighty Allah and not to the Governor, who carries-out ministerial act of administering oath, therefore, in the eventuality when he is incapable and is not willing to administer oath or when he is impracticable for any reason, and on the other hand his act of avoiding to nominate any other person amounts to transgressing the constitutional mandate as despite lapse of nine days from election of the Chief Minister, administration of oath is being avoided. It is noticed that election of the Chief Minister has not been challenged before any forum and still intact, therefore, escaping to administer oath by the Governor himself is permissible but, in such eventuality, nomination of any other person to administer oath is mandatory under Article 255 of the Constitution. Consequently, avoiding to administer oath through nominee tantamount to resile from his legal obligation, hence, this Court while deciding the earlier Writ Petition No.24320/2022 sent the matter to worthy President, being head of the State, for its solution but as per information provided by the Additional Attorney General file is still pending without any progress despite receiving advice thrice from Prime Minister’s office, which was otherwise not necessary. Therefore, by not taking prompt action to resolve the issue of administering oath of Chief Minister Punjab, for the sake of removal of anomaly of non-existence of functional Provincial Government exposes the President and his lofty office that will destroy the public trust and respect necessary for such office to represent the unity of the Republic. Since both the authorities failed to fulfill their obligations as mandated in the Constitution, in such eventuality, this Court being custodian to protect, observe and defend the Constitution, is in all respect justified to exercise the powers provided under Article 199 of the Constitution for the supremacy of law as none whosoever highly placed is above law, constrained to issue the direction mandated by the Constitution to ensure the administration of oath in terms of Article 255 of Constitution, of the newly elected Chief Minister of Province of the Punjab”.

9. This Court while deciding the said writ petition, ***suggested/advised/proposed that Governor shall ensure the completion of the process of administration of oath of Chief Minister Punjab, either himself or through his nominee, in terms of***

Article 255 of the Constitution, on or before 28.04.2022. Moreover, President of Pakistan was again advised to fulfil his constitutional obligations to facilitate the expeditious administration of oath of Chief Minister as mandated by the Constitution for ensuring a functional Provincial Government in Punjab. Although while passing the judgments this Court has enunciated the principles of law having binding effect under Article 201 of the Constitution which have been disregarded not only by the President of Pakistan but also by the Governor of the Punjab, causing nonfulfillment of his constitutional duty thereby violating Article 5 read with Article 189 and 201 of the Constitution.

10. Since the Governor of Punjab has also failed to exercise his powers and to perform his duties by avoiding the administration of oath to the newly elected Chief Minister thereby violating the clear advice of this Court to either administer the oath himself or through his nominee while elaborating and interpreting Article 255 of the Constitution which reads as under:

255 Oath of office.

- (1) *An oath required to be made by a person under the Constitution shall [preferably be made in Urdu or] a language that is understood by that person.*
- (2) *Where, under the Constitution, an oath is required to be made before a specified person and, for any reason, it is impracticable for the oath to be made before that person, it may be made before such other person as may be nominated by that person.*
- (3) *Where, under the Constitution, a person is required to make an oath before he enters upon an office, he shall be deemed to have entered upon the office on the day on which he makes the oath.*

11. The word ‘impracticable’ used in Article 255 of the Constitution makes it quite clear that the oath is to be made before a specific person and in case it is impracticable for the reason it may be made before such person as may be nominated by that person. Both the decisions of this Court despite having binding effect have been ignored deliberately by the President of Pakistan as well as by the

Governor of the Punjab. The Governor through his conduct has also himself made impracticable for the oath to be made before him.

12. In this situation, this Court will examine Article 5 of the Constitution which cast upon a duty on every citizen to be loyal to the State. In “WATAN PARTY and others Versus FEDERATION OF PAKISTAN and others” (2012 SCMR 584) the Hon’ble Supreme Court of Pakistan has observed that *“under Article 5 of the Constitution, it is the basic duty of every citizen to be loyal to the State and to be obedient to the Constitution and law, being inviolable obligation whether he may be and of every other person for the time being within Pakistan”*. In “PRESIDENT BALOCHISTAN HIGH COURT BAR ASSOCIATION and others Versus FEDERATION OF PAKISTAN and others” (2012 SCMR 1784) the has held that *“adherence to the Constitution and the Law by the citizens, who are officials or otherwise, is mandatory. Non-compliance of the Constitution and the Law makes a citizen liable for action, in accordance with law. Government is bound to enforce fundamental rights in the context of the scenario in Balochistan, providing security of life, property and liberty, in accordance with law. Non-enforcement of such rights of the citizens calls for the superior Courts to issue directions to the Federal as well as Provincial Governments to protect the life and property of all citizens equally”*. This Court in “Mian ALI ASGHAR Versus GOVERNMENT OF THE PUNJAB and others” (2021 MLD 370) has held as under:

“12. The word “inviolable” used in Article 5(2) of the Constitution means that it is never to be broken and infringed. In the case of President Balochistan High Court Bar Association and others versus Federation of Pakistan and others (2012 SCMR 1784), August Supreme Court of Pakistan has held that “to be loyal to the State is the basic duty of all citizens and they have to be obedient to the Constitution and the law, wherever they may be. Thus, adherence to the Constitution and the Law by the citizens is mandatory. Non-compliance of the Constitution and the Law makes a citizen liable for action, in accordance with law”. It would also

include principles of natural justice, procedural fairness and procedural propriety. Laws are always made not to be violated but to be obeyed. In Suo Motu Case No.15 of 2009 (P L D 2012 SC 610) August Supreme Court of Pakistan held that “it is expected from every citizen of Pakistan that he shall be loyal to the State and the basic duty of every citizen is to be obedient to the Constitution and law as ordained under Article 5 of the Constitution.” Respect for law is never maintained by force but by the appreciation of the reasons, appreciating its veracity and through obedience. Unfortunately, sometimes, the law falls in crisis due to misunderstanding or lack of vision”.

13. When confronted to learned counsel for the Petitioner how the Petitioner filed this petition instead of filing contempt petition under Article 204 of the Constitution, he states that the matter in hand relates to the enforcement of the judgments therefore, interpretation of Article 255 of the Constitution is required by this Court because judgments enunciated the principles of Article 255 in Paragraph 10 thereof by holding that “*by not taking prompt action to resolve the issue of administering oath of Chief Minister Punjab, for the sake of removal of anomaly of non-existence of functional Provincial Government exposes the President and his lofty office that will destroy the public trust and respect necessary for such office to represent the unity of the Republic*”. It is pertinent to mention here that the judgments are binding on the Respondents under Article 201 of the Constitution since these have been passed by referring to the principles enunciated in “Hakim Ali Zardari Versus The State and another” (PLD 1998 Supreme Court 1), “Mst. Amina Begum and others Versus Mehar Ghulam Dastgir” (PLD 1978 Supreme Court 220), “Justice Khurshid Anwar Bhinder Versus Federation of Pakistan and another” (PLD 2010 Supreme Court 483) and “All Pakistan Newspapers Society and others Versus Federation of Pakistan and others” (PLD 2004 Supreme Court 600) by the Hon’ble Supreme Court of Pakistan which are binding under Article 189 of the Constitution.

14. In “Mehdi Hassan, Additional Secretary, Food and Forests Department, Government of West Pakistan and another Versus Zulfiqar Ali, Conservative of Forest, Development Circle, Lahore” **(PLD 1960 (W.P.) Lahore 751)** the Court has held that “when an order passed by the High Court in the exercise of writ jurisdiction is not complied with, two procedures are open to the person aggrieved. He may pray for further directions when there can be a bona fide dispute as to what is the effect of the order or he may apply for under the contempt of Courts Act, 1926. In the first case, the Court may after determining the effects of its order give further directions for its enforcement. Such an order would not be an order in the exercise of its criminal jurisdiction. The Court which issues a writ can be moved for its implementation, but such further proceedings would be proceedings in the very same petition for it. If a court has already issued a writ, the Court can be approached for an interpretation of its orders for its enforcement, but these proceedings which may be call proceedings in execution or proceedings in implementation, are a continuation of the previous proceedings”.

15. It is to be noted that this Court, for the protection of fundamental rights, has already given directions to the concerned authorities in “SYED GHULAM MOIN UL HAQ GILLANI Versus PROVINCE OF PUNJAB etc” **(2021 CLC 1286 Lah)** by observing that “it is the duty of the Court to protect Fundamental Rights provided and guaranteed under the Constitution, and Article 199(1)(c) of the Constitution empowers this Court to issue any appropriate directions for the enforcement of Fundamental Rights, conferred by the Constitution in its Chapter-I of Part II, even to private persons”.

16. For what has been discussed above and in the light of directions/suggestions given by this Court in the judgments and the law laid down by the Hon’ble Supreme Court of Pakistan which are binding on the Courts under Article 189 of the Constitution, this petition is allowed and the Respondent No.1 is directed to convey the

Speaker National Assembly of Pakistan to administer oath(s) to newly elected Chief Minister of Punjab tomorrow i.e. 30.04.2022 at 11:30 A.M. at Lahore. The office of this Court is directed to transmit this order through fax immediately to the office of the Respondent No.1 today.

(JAWAD HASSAN)
JUDGE

Approved for Reporting

JUDGE

*Usman**